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Athens, 13-07-2023
Protocol No.: 1784

DECISION 27/2023

The Hellenic Data Protection Authority convened at the invitation of its President in a meeting at its headquarters on Tuesday, 21.02.2023 at 10:00, in order to examine the case referred to in the background of this document. Present were the President of the Authority, Konstantinos Menoudakos, and the regular members of the Authority Konstantinos Lamprinoudakis, Charalampos Anthopoulos, Christos Kalloniatis, Aikaterini Iliadou, and Grigorios Tsolias, as rapporteur. Absent due to impediments, although duly summoned in writing, were Spyridon Vlachopoulos and Christos Papadodouros, regular and alternate members, respectively. Present, without voting rights, were Charikleia Latsiou, legal auditor - lawyer, as assistant rapporteur, and Irini Papageorgopoulou, employee of the administrative affairs department, as secretary.

The Authority took into account the following:

With the complaint dated 12.01.2022 (and with protocol no. ΑΠΔ Γ/ΕΙΣ/213/12.01.2022), Dr. A, a physician and member of the Board of Directors of the Athens Medical Association (hereinafter AMA), claims that with decision no. 25806/14-12-2021, the AMA called upon all physician members of the Association who maintain private practices to send electronically certificates indicating their vaccination against the coronavirus COVID-19 or their infection by it. Following this, the complainant requests from the Authority: "A) To prohibit the AMA from implementing the aforementioned decision regarding the collection of vaccination or infection certificates from its members, due to its obvious illegality. B) To order the AMA to destroy any certificates that have been collected up to today, illegally, in the presence of the Hellenic Data Protection Authority. C) In any case, should this process be deemed lawful, even partially, to be applied within the limits already set by the European Data Protection Supervisor, who, to avoid phenomena leading to discrimination of individuals based on their personal vaccination status, with his recommendations dated 9-8-2021, advises the collection only of relevant aggregated statistical data."

In the context of examining the above complaint, the Authority summoned the AMA with document no. ΑΠΔ Γ/ΕΞΕ/388/14.02.2022 to provide specific clarifications regarding the allegations.

In response to the Authority's above document, the AMA, with its responses (protocol no. ... and dated ...) (and with protocol no. ΑΠΔ Γ/ΕΙΣ/2466/18.02.2022 and ΑΠΔ Γ/ΕΙΣ/3009/02.03.2022 documents, respectively), informed the Authority that the decision for the electronic collection of vaccination certificates from its members was made by the Board of Directors on 02.12.2021. Subsequently, with letter no. 25806/14.12.2021, the AMA called upon its members to send electronically the vaccination certificate against the coronavirus, simultaneously informing with this letter that the Association serves as the supervisory body for private primary healthcare providers, which exercises disciplinary authority over physicians operating within its jurisdiction. Additionally, with the email dated 20.12.2021, it called upon its members ("in your capacity as scientific responsible or collaborator of a primary healthcare provider") to submit the vaccination certificate at the link <https://www.isathens.gr/CovidCert/LogIn>.

Furthermore, the AMA, in its aforementioned responses, argues that the Association is a legal entity under public law (Article 291 par. 1 Law 4512/2018) with the primary purpose, among others, of overseeing compliance with the rules of medical ethics and promoting the ethical and deontological standards of the medical profession within its jurisdiction (Article 292 par. 1(a) Law 4512/2018). Moreover, it claims that pursuant to Article 85 par. 1 Law 4472/2017, it has the authority to grant, suspend, and revoke the operating certificate of a medical practice, polyclinic, diagnostic laboratory, and...

of the laboratory of physical medicine and rehabilitation, as well as the authority to impose the administrative sanctions provided for in Articles 13 and 17 of Presidential Decree 84/2001, namely the cessation of operations or the revocation of the operating license. Furthermore, the I.S.A. informs the Authority that, by Article 38 paragraph 4 of Law 4771/2021, an obligation was established for the competent local medical associations to conduct (in addition to the initial inspection for the issuance of the operating certificate of the entity) a random emergency inspection on ten percent (10%) of the entities based in their jurisdiction annually.

Subsequently, the I.S.A. argues that the reported processing of the collection of vaccination certificates of its members was carried out for a specific, clear, and lawful purpose under Articles 6 paragraph 1 item e and 9 paragraph 2 item θ of the GDPR, within the framework of the implementation of the mandatory vaccination of personnel employed in primary health care structures pursuant to Article 206 of Law 4820/2021. Additionally, the I.S.A. highlights an issue that arose from the implementation of the mandatory vaccination of its physician members, particularly the monitoring of compliance with the vaccination obligation, namely that the compliance check through the interoperability of information systems, as provided in the Joint Ministerial Decision No. Δ1α/ΓΠ.οικ.52796 (Government Gazette B 3959/27.8.2021), concerns employees and not its physician members, who hold the status of scientific responsible or collaborators of private entities providing primary health care services (hereinafter P.H.C.). Consequently – according to the I.S.A. – for the latter, information regarding their vaccination does not appear in the ERGANI information system from the National Vaccination Registry against the coronavirus, nor does the I.S.A.'s information system interoperate with the National Vaccination Registry.

Moreover, the I.S.A. argues that: “the simple uploading of certificates to the special electronic platform and their immediate verification and deletion can be considered an alternative form of presentation of certificates by electronic means, especially considering the need for immediate assurance of the lawful operation of the obligated parties, namely a large volume of clinics, which are called to play a leading role in the fight for the protection of public health. Given the geographical and population reach of the I.S.A. combined with the decision of the Board of Directors to adhere to the vaccination obligation by as many members – physicians as possible, the uploading, verification, and immediate deletion of certificates through its electronic platform was deemed by the I.S.A. as the most appropriate and proportional to the purpose of processing.”

Finally, A submitted to the Authority the memorandum dated 12.04.2022 (with reference number A.P.D. G/EIS/5881/12.04.2022), after requesting and receiving from the Authority (with the reference number G/EIS/5353/29.03.2022 document) the aforementioned responses from the I.S.A.

Following this, the Authority, with reference numbers G/EX/1588/28.06.2022 and G/EXE/1589/28.06.2022, summoned the I.S.A. and A, respectively, to appear at a meeting of the Plenary of the Authority on Tuesday, 05.07.2022, in order to discuss the aforementioned complaint. At this meeting, attended by Stergios Konstantinou (Registration No. D.S.A. ...), legal representative of the I.S.A., and A with her attorney Evangelia Charalambous (Registration No. D.S.A. ...), the Authority, after taking into account the statement of the I.S.A. through its legal representative that the reported processing of the collection of vaccination/sickness certificates of its members has been temporarily suspended until the examination of the complaint by the Authority, as well as the memorandum from 05.07.2022 (with reference number A.P.D. G/EIS/8556/05.07.2022) from A, accepted the request for postponement submitted by the I.S.A. with the reference number ... (and with reference number A.P.D. G/EIS/8401/29.06.2022) document and set a new date for the discussion of the case on Tuesday, 13.09.2022. At this meeting, representatives of the I.S.A. present before the Authority were B (Vice President of the Board of Directors of the I.S.A.) and Julia Konstantinou (Registration No. D.S.H. ...) and Stergios Konstantinou, lawyers, and the complainant A with her attorney Evangelia Charalambous. During this meeting, the Authority accepted the new request for postponement submitted by the I.S.A. with the reference number ... (and with reference number A.P.D. G/EIS/10001/09.09.2022) document and set, in the presence of those present, a new date for the discussion of the case before the Authority on 01.11.2022. At the meeting on 01.11.2022, G, President

of the Board of Directors of the I.S.A., appeared before the Authority along with...

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Representatives of lawyers Charas Zervas (Bar Association Registration No. ...) and Stergios Konstantinou and A, along with the representative lawyer Evangelia Charalampous. During this session, the attendees, after presenting their views, were given a deadline until November 18, 2022, for the submission of written memoranda. Subsequently, the documents submitted on November 18, 2022, by ISAA and A (with reference numbers APD G/EIS/11922/21.11.2022 and G/EIS/11941/21.11.2022, respectively) were timely submitted to the Authority. The Authority, after examining the contents of the file, having heard the rapporteur and the clarifications from the assistant rapporteur, who attended without voting rights, after thorough discussion,

CONSIDERED IN ACCORDANCE WITH THE LAW

1. Since, according to the provisions of Articles 2(1) of the GDPR and 2 of Law 4624/2019, the rules for the protection of personal data apply: "to the wholly or partially automated processing of personal data, as well as to the non-automated processing of such data which are included or are intended to be included in a filing system." In this case, from the elements of the case file, it appears that the posting of vaccination certificates against the coronavirus COVID-19 was carried out on the platform <https://members.isathens.gr> of ISAA, to which its members, doctors - scientific responsible persons of PHC entities, accessed using the Association's codes and registered their vaccination certificates. The aforementioned posting entails automated processing by ISAA as the data controller under Article 4(7) of the GDPR, falling within the regulatory scope of the rules for the protection of personal data. Furthermore, in the activity record under Article 30 of the GDPR that ISAA sent with reference number 27044/17.02.2022 (and with reference number APD G/EIS/2466/18.02.2022) to the Authority, the activity of collecting vaccination certificates is included, and it is described, among other things, that the retention of the relevant data (vaccination certificates) is done "electronically on the server," as well as that "a record is maintained." Finally, given that the rules for the protection of personal data also apply in the case of "digital display" and "temporary storage," it is crucial to ascertain that automated processing took place, even if the registration on the Association's digital platform was temporary and only for a specific period.

2. Since, from the provisions of Articles 51 and 55 of the General Data Protection Regulation (Regulation 2016/679) and Article 9 of Law 4624/2019 (Government Gazette A' 137), it follows that the Authority has the competence to supervise the application of the provisions of the GDPR, this law, and other regulations concerning the protection of individuals from the processing of personal data. Specifically, the Authority has the competence to address the reported processing of the registration of vaccination certificates on the platform <https://members.isathens.gr> of ISAA within the framework of its ex officio competence, pursuant to Articles 57(1)(a) and (h) of the GDPR and 13(1)(h) of Law 4624/2019, as in any case personal data of the doctors who are members of the Association, who posted their vaccination certificates on the aforementioned platform, were processed, according to what is stated in the aforementioned consideration of this document. The Authority considers, in this case, that its above ex officio competence is established independently of the determination of the fulfillment (or not) of the active standing of the complainant to submit a relevant complaint to the Authority, either in her capacity as a doctor, according to the provisions of Article 77 of the GDPR, since as she herself acknowledges both during the hearing before the Authority and with her memorandum under reference number G/EIS/11941/21.11.2022, she did not register a relevant vaccination certificate on the ISAA platform, or in her capacity as a representative of the trade union faction "... - ..." and a member of the Board of ISAA,

1 See pages 15 and 9 of the memoranda dated 01.03.2022 and 18.11.2022 (with reference numbers APD G/EIS/3009/02.03.2022 and G/EIS/11922/21.11.2022, respectively) of ISAA.

2 See also the Authority's decisions 07/2022 para. 14 and 8/2022 para. 14, published on the Authority's website.

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According to the provisions of Articles 80 GDPR and 41 GDPR, and regardless of the validity under Article 8 of Law 1599/1986 of the submitted (with reference number G/EIS/11941/21.11.2022) responsible declaration, it does not appear that vaccination certificates against the coronavirus COVID-19 of members of the party were processed, nor did it further emerge that any other processing took place under Articles 2 paragraph 1 GDPR and 2 Law 4624/2019 due to the non-registration of the vaccination certificates of the party members on the aforementioned platform, which was in any case voluntary (see below under consideration 11 of the present document).

3. Because Article 5 of the GDPR establishes the principles of processing that govern the processing of personal data. Specifically, it is stated in paragraph 1 that personal data, among other things: “a) are processed lawfully and fairly in a transparent manner in relation to the data subject (‘lawfulness, fairness, transparency’), b) are collected for specified, explicit, and legitimate purposes and are not further processed in a manner incompatible with those purposes (...), c) are adequate, relevant, and limited to what is necessary for the purposes for which they are processed (‘data minimization’) (...), e) are kept in a form which permits identification of data subjects for no longer than is necessary for the purposes of the processing of personal data; personal data may be stored for longer periods, provided that the personal data will be processed only for archiving purposes in the public interest, for scientific or historical research purposes, or for statistical purposes, in accordance with Article 89 paragraph 1 and provided that appropriate technical and organizational measures required by this regulation are applied to safeguard the rights and freedoms of the data subject (‘storage limitation’) (...)”.

4. Because, according to the provisions of Article 5 paragraph 2 of the GDPR, the data controller bears the responsibility and must be able to demonstrate compliance with the principles of processing established in paragraph 1 of Article 5. As the Authority has ruled, the GDPR adopted a new compliance model, the central point of which is the principle of accountability, under which the data controller is obliged to design, implement, and generally take the necessary measures and policies to ensure that the processing of data is in accordance with the relevant legislative provisions. Furthermore, the data controller is burdened with the further duty to demonstrate at any time compliance with the principles of Article 5 paragraph 1 GDPR.

5. Because, as the Authority has ruled, taking into account the decisions of the Court of Justice of the European Union (CJEU) and the Council of State, in order for personal data to be lawfully processed, that is, processed in accordance with the requirements of the GDPR, the conditions for the application and adherence to the principles of Article 5 paragraph 1 GDPR must be cumulatively met. The existence of a legal basis (Articles 6 and 9 GDPR) does not exempt the data controller from the obligation to adhere to the principles (Article 5 paragraph 1 GDPR) regarding the lawful nature, necessity, proportionality, and the principle of data minimization. In the event that any of the principles set out in Article 5 paragraph 1 GDPR are violated, the processing in question is deemed unlawful (contrary to the provisions of the GDPR) and the examination of the conditions for the application of the legal bases of Articles 6 and 9 GDPR, respectively, for the processing of ordinary and special categories of personal data is unnecessary. Consequently, the collection and processing of personal data in violation of the principles of Article 5 GDPR is not remedied by the existence of a legitimate purpose and legal basis.

3 See in particular Decision 44/2019 of the Authority, para. 17, available on its website.

4 See CJEU Decision of 16-01-2019 in Case C-496/2017 Deutsche Post AG v. Hauptzollamt Köln, para. 57.

5 See Council of State Decision 517/2018, para. 12.

6 See L. Mitrou, the General Regulation on Personal Data Protection (new law - new obligations - new rights), ed. Sakkoula, 2017, pp. 58 and 69-70.

7 See in particular Decision 38/2004 of the Authority, available on its website.

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6. Whereas, by Presidential Decree 84/2001 (Government Gazette A' 70), the terms, conditions, procedures, and specifications for the establishment and operation of Primary Health Care (PHC) entities are defined. According to Article 1 of Presidential Decree 84/2001, as in force, the concurrent

supervisory authority for PHC entities is held by the Minister of Health, the Region, and the relevant medical or dental association. Subsequently, by Ministerial Decision No. Υ3β/Γ.Π./οικ. 24948 (Government Gazette B' 713/13.03.2012), it was stipulated that for the lawful operation of a medical practice, among other requirements, a license or certificate of operation is required, which is granted by the local medical associations (Article 1). Article 6 of the aforementioned ministerial decision specifies the terms and conditions for the issuance of the certificate as follows: "1. A committee is established at the headquarters of each Medical or Dental Association (...) 2. The committee's task is: a) To provide an opinion on the issuance of the operating certificate for the above entities, following an on-site inspection. b) To supervise and control these entities during their operation (...)". Furthermore, Article 85 of Law 4472/2017 provides: "1. The competent authority for the issuance, suspension, and revocation of the operating certificate for medical practices, polyclinics, diagnostic laboratories, and physical medicine and rehabilitation laboratories is designated as the local Medical Association (...). In the context of exercising administrative supervision and control, the Medical and Dental Associations impose the administrative penalties and fines provided for in Articles 13 and 17 of Presidential Decree 84/2001 (A' 70), as applicable at any given time." Finally, Article 38 paragraph 4 of Law 4771/2021 stipulates that: "The competent medical associations must conduct, in addition to the initial inspection for the issuance of the operating certificate of the entity, a random emergency inspection of ten percent (10%) of the entities located within their jurisdiction annually. All entities must have been inspected at least once (1) within five years from the commencement of this law." From the entirety of the above provisions, it follows that the Medical Association of Athens (ΙΣΑ) has the authority to grant operating licenses for PHC entities (and consequently to suspend and revoke certificates), as well as the obligation for regular, emergency, and random on-site inspections of their lawful operation.

8 In Article 1 of Presidential Decree 84/2001, it is provided that: "1. Medical and dental services of Primary Health Care (PHC) are also provided by private entities (...). 2. Private entities that exclusively provide primary health care services (PHC) are as follows: a. Private medical and dental practices b. Private polyclinics and dental polyclinics c. Private diagnostic laboratories d. Private physical medicine and rehabilitation laboratories (...)".

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7. Whereas, furthermore, Article 13 paragraph 1 of Presidential Decree 84/2001 provides that the operation of PHC entities is interrupted and the corresponding license is revoked in the case, among others: "st. If the essential terms of good operation and provision of health services are not adhered to, according to the rules of medical (dental) science and medical (dental) ethics." Furthermore, the provision of Article 16 of Presidential Decree 84/2001 states: "4. The inspection is regular (at least once a year for each PHC entity) or extraordinary and particularly concerns compliance with the specifications of building and technological infrastructure, as well as adherence to the other terms and conditions of this Presidential Decree for the lawful operation of the entity, the quality of the services provided, the application of health regulations, respect for the rules of medical ethics and the individual rights of citizens, and the general compliance with laws, regulatory provisions, and circulars concerning private PHC entities. The failure to inspect each PHC service provider at least once (1) a year constitutes a serious violation of duty for the supervisory bodies." Therefore, the subject of inspection by ΙΣΑ, through its competent committees, is the adherence to the terms and conditions for the lawful operation of PHC entities, the quality of the services offered, the application of health regulations, and respect for the rules of medical ethics.

8. Whereas, Article 206 of Law 4820/2021 provides: "1.a. For compelling reasons of public health protection, all personnel of private, public, and municipal elderly care and disability care units (medical, paramedical, nursing, administrative, and support staff) are required to be vaccinated against the coronavirus COVID-19 (...). 2. For compelling reasons of public health protection, all personnel (medical, paramedical, nursing, administrative, and support) in private, public, and municipal health structures (diagnostic centers, rehabilitation centers, clinics, hospitals, structures

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primary health care, hospitalization units, National Emergency Aid Center, and National Public Health

Organization), as well as the Disability Certification Centers (K.E.P.A.). The obligation of the first paragraph also applies to students of undergraduate and postgraduate programs of the Schools of Health Sciences of Higher Education Institutions (A.E.I.), as well as to students of Vocational Training Institutes (I.E.K.) and Colleges, who participate in any kind of educational process conducted in hospitals of the National Health System (E.S.Y.), in university hospitals, and in private health facilities.

3. The personnel of the structures of paragraphs 1 and 2 is understood to mean any natural person who provides services or performs work for the operating entity of these structures for a fee or voluntarily or conducts practical training within the framework of educational processes of public or private educational structures of any level, with physical presence within these structures, as well as any natural person who provides services, with physical presence within the same structures, to a legal entity with which the operating entity of the structures is contracted. (...) 5. For the implementation of paragraphs 1 and 2, the presentation of the EU Digital COVID Certificate (EUDCC) of Regulation (EU) 2021/953 of the European Parliament and of the Council of June 14, 2021, and of the first article of the Legislative Content Act of May 30, 2021 (A`87), which was ratified by Article 1 of Law 4806/2021 (A`95), is required, containing information regarding the status of the natural person-holder concerning vaccination or infection by the COVID-19 coronavirus, or a vaccination certificate of paragraph 5 of Article 55 of Law 4764/2020 (A`256), or a certificate of a positive diagnostic test of paragraph 1 of Article 5 of the joint decision of the Ministers of Health and State No. 2650/10.4.2020 (B` 1298), or an equivalent certificate or attestation from a third country. The certificate or attestation of the first paragraph is checked by the employer or the responsible unit through the special electronic application of paragraph 1a of Article 33 of Law 4816/2021 (A`118), observing the other provisions of the above article. 6. The respective employer or unit manager is obliged to inform employees by any appropriate means about the obligations arising from this article. In the case of paragraph 1, the obligated personnel must have received the first or only dose by August 16, 2021, and the completion of the vaccination cycle must be done according to the prescribed procedures and within the specified time. In the case of paragraph 2, the obligated personnel must have received the first or only dose by September 1, 2021, except for students and trainees who must have received the first or only dose by September 30, and the completion of the vaccination cycle must be done according to the prescribed procedures and within the specified time. In the case of non-compliance with this obligation, the following consequences occur: (...) c) For private obligated individuals, who work in the structures that fall within the scope of this law as freelancers, an administrative fine is imposed: a) ten thousand (10,000) euros for each violation and up to fifty thousand (50,000) euros, and b) in the case of recidivism, which is established in a re-inspection, twenty thousand (20,000) euros for each violation and up to two hundred thousand (200,000) euros. Freelancers providing health services in the above structures, in violation of this, are additionally subject to the following penalties: ca) every contract of the professional with the National Organization for the Provision of Health Services (EOPYY) and the public insurance funds is automatically and without compensation terminated from the date of certification of the violation, cb) the ability for electronic prescribing under Law 3892/2010 (A` 189) is suspended, and cc) the ability to execute electronic prescriptions under Law 3892/2010 is suspended. Professionals providing medical services in private primary health care structures (private practices, pharmacies) are obliged to affix to the external door of the structure a document informing patients that all employees in the structure have been vaccinated in compliance with this. The failure to comply with the obligation of the previous paragraph is punishable by an administrative fine of three hundred (300) euros. The penalties of this case apply to violations committed from the publication of this (...)."

9. Because, following the above, the provisions of Article 206 of Law 4820/2021 established, for imperative reasons of public health protection, the

The obligation of vaccination for all staff, including those in private health facilities, was established, the obligated personnel were determined, and specific sanctions were provided in case of non-compliance with the aforementioned obligation. With the provisions of Article 206 of Law 4820/2021, the special health regulation of mandatory vaccination for healthcare workers was

established for the purpose of serving an imperative public interest, related to the protection of public health against the coronavirus COVID-19. Specifically, as determined by the decision of the Council of State (CoS) 1684/2022, the special health regulation of Article 206 of Law 4820/2021 aims at: a) preventing the risk of harm due to the transmission of the disease to hospitalized patients and other vulnerable individuals under their care, b) protecting patients who are under the care of those obligated to be vaccinated, and c) ensuring the uninterrupted and continuous operation of health services.

10. Furthermore, with the Joint Ministerial Decision (JMD) No. Δ1α/ΓΠ.οικ.52796 (Government Gazette B 3959/27.8.2021) titled "Monitoring and Method of Control of Compliance with the Obligation of Vaccination Against the Coronavirus," issues regarding the processing of personal data of employees, including those in Primary Health Care (PHC) entities that were subject to mandatory vaccination under the provisions of Article 206 of Law 4820/2021, were specified. From the entirety of the provisions of the aforementioned JMD, it appears that there is no provision for electronic cross-checking from the Vaccination and COVID-19 Patient Registries maintained by the Ministry of Health through IDIKA S.A. with the ERGANI information system of the Ministry of Labor for doctors who are members of medical associations and are required to comply with the obligation of Article 206 of Law 4820/2021.

11. From the assessment of all the elements of the case file, in light of the aforementioned considerations, it appears that the posting of vaccination certificates against COVID-19 by doctors who are members, as scientifically responsible entities of PHC, on the platform <https://members.isathens.gr> of the Athens Medical Association (ISA) was done voluntarily/optionally, following the document No. 25806/14.12.2021, in order to facilitate the Association in exercising its authority to control lawful operation, based on the special health regulation of Article 206 of Law 4820/2021, for a significant number of PHC entities in its area of responsibility, under the extraordinary conditions of the pandemic for the sake of protecting an imperative public interest. This is because, according to the content of the aforementioned document No. 25806/14.12.2021, ISA "requested" its member doctors to send/upload their vaccination certificate against COVID-19 and simultaneously informed them on the relevant link of the aforementioned platform regarding the purpose of collection and the legal basis for processing. Additionally, it appears that the processing of the relevant data that took place following ISA's invitation did not entail any adverse measure against those member doctors who did not respond to it, even against vaccinated doctors against COVID-19, nor did it replace the control process by the competent committees of ISA during regular, extraordinary, or sampling inspections (on-site checks) regarding the lawful operation of PHC entities in its area of responsibility, including the control of compliance with the vaccination obligation of its member doctors, through the demonstration of digital vaccination as per Article 206 paragraph 5 of Law 4820/2021. Moreover, it appears that the aforementioned JMD No. Δ1α/ΓΠ.οικ.52796 (Government Gazette B 3959/2021) did not regulate the method of monitoring the category of those obligated to be vaccinated, namely the doctors who are members of ISA, who as scientifically responsible entities of PHC are not required to declare their own vaccination status.

11 Approximately 13,000.

12 Specifically, the relevant document No. 25806/14.12.2021 from ISA to its members states: "According to the decision of the Board of Directors of the Athens Medical Association dated 2.12.2021, which is the guardian of public health according to its statutory provisions, we kindly ask you to send us your vaccination certificate against COVID-19 in electronic form. As a Medical Association, we are the supervisory body of private PHC entities and the competent disciplinary authority for all doctors operating in our area of responsibility. Above all, as scientists and health professionals, we comply with the dictates of our science and the behavior that our oath and the overall legacy of Hippocrates impose on us. As the leadership team of the doctors of Athens, we want and are able to prove it."

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status in the information systems of Article 3 of the Joint Ministerial Decision, so that through their interoperability, the conclusion of compliance with the measure for the protection of public health can be drawn. Furthermore, it emerged that the Ministry of Health did not respond to the letter no.

25980/22.12.2021 from the Athens Medical Association (ΙΣΑ) requesting clarifications regarding the required method of monitoring the category of individuals obligated to be vaccinated, namely the physician members of the ΙΣΑ. Following this, taking into account the announcement no. 25499/01.12.2021 from the National Organization for Healthcare Services Provision (ΕΟΠΥΥ), which called on the regulatory bodies of healthcare units to inform the Organization of any decisions regarding the suspension or termination of operations due to non-compliance with the mandatory measure, in order to impose the sanctions of paragraph 6 of Article 206 of Law 4820/2021, the Authority, which, in light of the examined complaint, is addressing the matter, as stated above, within the framework of its ex officio jurisdiction, deems that the collection of the relevant vaccination certificates, which was conducted within the framework of the statutory purpose of the ΙΣΑ according to Article 292 of Law 4512/2018 for the sake of serving a superior and imperative public interest in protecting public health and ensuring the uninterrupted lawful operation of Primary Healthcare providers, including the monitoring of compliance with the specific health regulation based on the provisions of Articles 6 paragraph 1 subparagraph e and 9 paragraph 2 subparagraph h of the General Data Protection Regulation (GDPR), is, in principle, lawful according to Article 5 paragraph 1 subparagraph a of the GDPR. Consequently, it is unnecessary to examine the validity of the ΙΣΑ's claim regarding the equivalence of the posting of the relevant certificates with a "digital display" of them.

12. Since, regardless of the fact that the documents in the file indicate that the applicant did not send the ΙΣΑ a vaccination certificate against the coronavirus COVID-19 or a certificate of recovery from it according to the aforementioned decision no. 25806/14-12-2021, the Authority, within the framework of its ex officio investigation of the matter, as stated above, points out that for the asserted purpose of processing, namely assisting the exercise of the ΙΣΑ's jurisdiction through the competent committees during on-site inspections of Primary Healthcare providers in its area of responsibility, there is no longer a reason to retain the vaccination certificates of the physician members of the ΙΣΑ, which were subject to processing under the letter no. 25806/14.12.2021 from the Association, and, therefore, the necessary time period for the purposes of processing, during which their retention was permitted, according to Article 5 paragraph 1 subparagraph e of the GDPR, has elapsed, given that the ΙΣΑ's monitoring of compliance with the vaccination obligation of its physician members, as scientifically responsible entities of Primary Healthcare, and consequently, the collection of the presented/displayed vaccination certificates is carried out during on-site inspections within the framework of the exercise of its legal responsibilities.

FOR THESE REASONS

The Authority finds that the collection of vaccination certificates against the coronavirus COVID-19 of the physician members of the ΙΣΑ, which were posted on the platform <https://members.isathens.gr> following the letter no. 25806/14.12.2021 from the Association, was permissible under the then extraordinary circumstances for the protection of public health and within the framework of exercising the legal responsibilities of the Association.

The President

Konstantinos Menoudakos

The Secretary

Irini Papageorgopoulou